

24STCV05807 24STCV05807

County: los-angeles

Division: Civil Law and Motion

Department: 300

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Case Number: 24STCV05807 Hearing Date: June 25, 2026 Dept: 300

CASE NUMBER: 24STCV05807

CASE NAME: Preferred Bank vs. Sigue Corporation, et al.

TYPE OF MOTION: (1) Application for Order for Sale of Dwelling (Hazeltime)

(2)

Application for Order for Sale of Dwelling (Van Nuys)

FILING PARTY: Plaintiff Preferred Bank

RESPONDING

PARTY: Unopposed

HEARING DATE: June 25, 2026

Case Background

This action arises from the alleged breach of various credit agreements and guaranties.

On March 7, 2024, Plaintiff Preferred Bank (Plaintiff) filed a complaint against Defendants Sigue Corporation, SGS Corporation, GroupEx Financial Corporation, Guillermo Tomas De La Vina, individually and in his capacity as trustee of the amended and restated Guillermo Tomas De La Vina Trust (collectively, Defendants) and DOES 1 through 20.

On July 16, 2025, after the parties' dispute was resolved in arbitration, the Court entered judgment on the arbitration award. Judgment was entered against Defendants, jointly and severally, in the total amount of \$26,320,548.02.

On July 29, 2025, Plaintiff recorded an abstract of judgment with the Los Angeles County Recorder's Office.

On February 27, 2026, Plaintiff filed a writ of execution.

On May 8, 2026, Plaintiff filed the instant applications for an order for sale of dwellings (Hazeltine) and (Van Nuys). The applications are unopposed.

Instant Pleading

Plaintiff applies for an order for the sale of dwellings as to real property and dwellings located at 14343 Burbank Blvd., Apt 301, Van Nuys, CA 91401 and 5400 Hazeltine Ave., Los Angeles, CA 91404 (collectively, Subject Property).

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Decision

The Court sets an Order to Show Cause Why Order for Sale of Dwelling (Hazeltine) and (Van Nuys) Should Not Issue on 09/09/2026 at 08:30 AM in Department 300 of the Stanely Mosk Courthouse.

Discussion

Plaintiff applies for an order for the sale of dwellings as to real property and dwellings located at 14343 Burbank Blvd., Apt 301, Van Nuys, CA 91401 and 5400 Hazeltine Ave., Los Angeles, CA 91404 (collectively, Subject Property).

Code of Civil Procedure section 704.750 states that:

“Promptly after a dwelling is levied upon (other than a dwelling described in subdivision (b) of Section 704.740), the levying officer shall serve notice on the judgment creditor that the levy has been made and that the property will be released unless the judgment creditor complies with the requirements of this section. Service shall be made personally or by mail. Within 20 days after service of the notice, the judgment creditor shall apply to the court for an order for sale of the dwelling and shall file a copy of the application with the levying officer. If the judgment creditor does not file the copy of the application for an order for sale of the dwelling within the allowed time, the levying officer shall release the dwelling.”

(Code Civ. Proc., § 704.750(a).)

“The judgment creditor’s application shall be made under oath, shall describe the dwelling, and shall contain all of the following:

(a) A

statement whether or not the records of the county tax assessor indicate that there is a current homeowner’s exemption or disabled veteran’s exemption for the dwelling and the person or persons who claimed any such exemption.

(b) A

statement, which may be based on information and belief, whether the dwelling is a homestead and the amount of the homestead exemption, if any, and a statement whether or not the records of the county recorder indicate that a homestead declaration under Article 5 (commencing with Section 704.910) that describes the dwelling has been recorded by the judgment debtor or the spouse of the judgment debtor.

(c) A

statement of the amount of any liens or encumbrances on the dwelling, the name of each person having a lien or encumbrance on the dwelling, and the address of such person used by the county recorder for the return of the instrument creating such person’s lien or encumbrance after recording.

(d) A

statement that the judgment is based on a consumer debt, as defined in subdivision (a) of Section 699.730, or that the judgment is not based on a

consumer debt, and if the judgment is based on a consumer debt, whether the judgment is based on a consumer debt that was secured by the debtor's principal place of residence at the time it was incurred or a statement indicating which of the exemptions listed in subdivision (b) of Section 699.730 are applicable. If the statement indicates that paragraph (7) of subdivision (b) is applicable, the statement shall also provide the dollar amount of the original judgment on which the lien is based. If there is more than one basis, the statement shall indicate all bases that are applicable."

"Upon the filing of the application by the judgment creditor, the court shall set a time and place for hearing and order the judgment debtor to show cause why an order for sale should not be made in accordance with the application." (Code Civ. Proc., § 704.770(a).) At the hearing:

"Not later than 30 days before the time set for hearing, the judgment creditor shall do both of the following:

(1) Serve

on the judgment debtor a copy of the order to show cause, a copy of the application of the judgment creditor, and a copy of the notice of the hearing in the form prescribed by the Judicial Council. Service shall be made personally or by mail.

(2) Personally

serve a copy of each document listed in paragraph (1) on an occupant of the dwelling or, if there is no occupant present at the time service is attempted, post a copy of each document in a conspicuous place at the dwelling."

(Code Civ. Proc., § 704.770(b).)

Here, Plaintiff has timely filed the instant applications, and such applications comply with the requirements of Code of Civil Procedure section 704.760. (Code Civ. Proc., § 704.750(a).) Pursuant to the Application and upon a finding of good cause, the Court sets an OSC Re: Why Order for Sale of Dwelling Should Not Issue on 09/09/2026 at 8:30 a.m. in Department 300 of the Stanely Mosk Courthouse.

Code of Civil Procedure requires that "[t]he time set for hearing shall be not later than 45 days after the application is filed or

such time as the court orders upon a showing of good cause.” (Code Civ. Proc., 704.770(a).) Plaintiff is required to service notice of the hearing no later than 30 days before the time set for hearing. (Code Civ. Proc., § 704.770(b).)

Under Local Rule 3.223, “[a]n application for an order for sale of a dwelling must provide at the hearing competent evidence of the following:

(1)

The fair market value of the property by a real estate expert;

(2) Litigation guarantee or title report that contains

a legal description of the property, the names of the current owners, a list of all deeds of trust, abstracts of judgments, tax liens and other liens recorded against the property, whether a declaration of homestead has been recorded, whether a current homeowner’s exemption or disabled veteran’s exemption has been filed with the county assessor, and the persons claiming such exemption;

(3) The amount of any liens or encumbrances on the

dwelling, and the names and addresses of the lienholders and when the judgment creditor’s lien attached. The judgment creditor must ascertain the precise amounts of obligations secured by senior liens by making a written demand for beneficiary statements from senior lienholders pursuant to Civil Code section 2943. The judgment creditor may need to conduct an examination pursuant to Code of Civil Procedure sections 708.120 or 708.130 to determine the precise amounts of the junior liens, the daily rate of interest due on the senior and junior liens, and encumbrances of record; and

(4) The date of service on the judgment creditor of

the levying officer’s notice that the dwelling was levied upon.”

(Local Rule, 3.223(a).)

Conclusion

Based on the foregoing, Plaintiff’s Applications for Order for Sale of Dwelling (Hazeltine) and (Van Nuys) are ruled on as follows:

The Court sets an Order to Show Cause Why Order for Sale of Dwelling (Hazeltine) and (Van Nuys) Should Not Issue on 09/09/2026 at

08:30 AM in Department 300 of the Stanely Mosk Courthouse.